

It seems obvious from Harlow and Davis that qualified immunity should be resolved by the judge since "a jury is [not] competent to decide the 'state of the law'" (McKinney v. Trattles, 732 F.2d at 1324). The whole purpose of Harlow's "adjustment" of the qualified immunity standard was to avoid extensive pretrial and trial proceedings which the Supreme Court found "peculiarly disruptive of effective government" (457 U.S. at 815, 818). This point was reinforced by the Supreme Court's holding in Mitchell v. Forsyth, 53 U.S.L.W. at 4802-03, that district court orders denying qualified immunity claims must be immediately appealable to protect the "defendant's claim of right not to stand trial on the plaintiff's allegations" (id. at 4802, emphasis in original).

Nonetheless, some courts have concluded that, in certain situations, trial still is required to resolve the qualified immunity claim. This generally has occurred where the government actor's purpose is deemed determinative of whether he violated clearly established law. As the Eighth Circuit explained in a discrimination action:

By definition, there can be no liability in such an action unless the plaintiff shows that the defendant intentionally discriminated against her because of her sex. If the jury finds that intentional discrimination has occurred, and if, as in this case, the evidence is sufficient to support that finding, "good faith" on the part of the defendant is logically excluded.